

## 22STCV39766 22STCV39766

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-07-01

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Case Number: 22STCV39766 Hearing Date: July 1, 2026 Dept: 617

Dept.

617

Date:

7-1-26

Case

#: 22STCV39766

Trial

Date: N/A

RELIEVED AS COUNSEL

MOVING

ATTORNEY: Eric A. Jimenez

RESPONDING

PARTY: Unopposed/Defendant, El Zarape Cocina On Melrose Inc.

RELIEF

REQUESTED

Motion

to be Relieved as Counsel of Record for Defendant

SUMMARY

OF ACTION

Plaintiff

Angelica Montano sued Defendants El Zarape Melrose Corp., El Zarape Fountain Inc., El Zarape Vine Inc., El Zarape Redondo Beach, El Zarape Cocina on Melrose Inc., and El Zarape Beverly Kitchen Inc. for multiple alleged violations of the Labor Code. All Defendants are in default.

RULING: Continued.

Counsel for Defendant El

Zarape Cocina on Melrose moves to be relieved as counsel of record due to a "fundamental and unresolvable breakdown in communication." Counsel and Defendant have not communicated in over 10 months despite counsel's efforts. Counsel further states that Defendant is currently a suspended corporation. The motion does not comply with the form requirements in two respects: (1) a proposed order was not served and filed and (2) the notice of motion and motion and the declaration were not served on all parties who have appeared in the case. "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case." (Cal. Rules of Court, rule 3.1362(d).) "The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel-Civil (form MC-053) and must be lodged with the court with the moving papers." (Id. rule 3.1362(e).) The motion is therefore continued to July 8, 2026.

Moving counsel to lodge the requisite proposed order and proofs of service.

Moving counsel to give notice.